HEROD CHIKUKU
versus
WILLARD CHIKUKU
and
MACHINGAUTA MUCHISI MARANGE
and
MINISTER OF LOCAL GOVERNMENT AND PUBLIC WORKS
and
PROVINCIAL ASSEMBLY OF CHIEFS MANICALAND

HIGH COURT OF ZIMBABWE
SIZIBA J
MUTARE, 16 February 2026

OPPOSED MOTION (*Ex tempore judgment*)

Mr. *P. C Gwizo*, for the plaintiff
Mr *K. Tundu*, for the 1st & 2nd defendants
Mr *N. Muchinguri*, for the 3rd and 4th defendants

SIZIBA J:

1. On 24 September 2024, the plaintiff filed summons against the defendants seeking the following relief:

a) The appointment of the first defendant as headman Chikuku by the third defendant be declared to be unlawful and invalid as it violates the known applicable customary succession principles of the Chikuku clan.

b) The appointment of first defendant as headman Chikuku be set aside and a vacancy for the post of headman Chikuku be declared.

c) The dispute of who should be appointed the next headman Chikuku be remitted to the third defendant to:

i) Convene a meeting of the Provincial Assembly of Chiefs responsible for the Marange area within 2 months to make recommendations on the resolution of the dispute in casu, and thereafter act in terms of those recommendations.

ii) Costs of suit on attorney/client scale.

2. The plaintiff's case is that the first defendant is not eligible for appointment as a headman as his family is of the 'house of spirits'. The appointment of the first defendant is said to be contrary to the customary succession principles of the Chikuku clan. The plaintiff also says that his correspondence to the defendants was not responded to in this regard and hence his administrative and Constitutional rights to be heard have been violated.

3. The first and second defendants raised points of law in their Plea as follows:
   a) That the plaintiff has no cause of action.
   b) That the plaintiff has adopted a wrong procedure.
   c) That the relief sought is incompetent.

4. At the Pre-Trial Conference, it was directed by the court that the matter be set down on the opposed roll for determination of the first and second defendants' points of law.

5. The first and second defendants' contention that the plaintiff has not pleaded a cause of action in terms of the Traditional Leaders Act is hard to follow. Reliance on *Marange and Marange & Ors* SC 1/21 is misplaced. If all what the plaintiff is alleging is proved to be true, he may have a remedy at law. In assessing the question of whether the plaintiff has a cause of action, the court does not worry itself about the defenses being relied upon by the defendants. The plaintiff has alleged that the first defendant does not qualify for appointment as a headman in terms of custom and that his complaints were not addressed. He cannot fail to have a remedy at law for such complaints. There is no merit in this point *in limine*.

6. The argument that the plaintiff has used a wrong procedure is equally without merit. The plaintiff may have brought an application for review rather than an action but he is seeking a declarator as well and he is entitled to do so by way of action proceedings and moreover there are material disputes of fact which cannot be resolved in affidavits without hearing oral evidence. It was not proven by the first and second defendants that the plaintiff's

application for condonation of late noting of a review was dismissed. There is again no merit in this point *in limine*.

7. There is merit in first and second defendants' contention that the relief sought by the applicant is incompetent. Paragraph (c) of the prayer seeks to empower the third defendant to convene the fourth defendant in order to resolve the dispute concerning the appointment of a traditional leader. Neither in the Traditional Leaders Act nor the Constitution of Zimbabwe is the third respondent clothed with such powers or mandate. What the law only allows is the fourth defendant to resolve disputes among or between traditional leaders of which the plaintiff is not yet a traditional leader.

8. When Mr *Tundu* submitted that para (b) of the plaintiff's prayer in the summons has the effect of creating a vacancy, Mr *Gwizo* then sought an amendment by deleting that prayer. Again, when Mr *Gwizo* was made to appreciate that this court cannot delve into resolving the customary succession principles of the Chikuku clan and resolve disputes concerning the appointment of traditional leaders outside of its review powers as was held in *Kamuchenje and Others* v *Minister of Local Government and Public Works and Others* HH 443/24, he again sought to amend para (a) by deleting the last part which makes reference to such customary principles. This raises two difficulties. The first hurdle for the plaintiff is that in his pleadings, his major ground for seeking the removal of first defendant from being headman is that he does not qualify to be a headman in terms of the customary succession principles of the clan. This is the context in which all the rights that he claims to possess emanated from as he was pursuing such grievance. If such allegation is removed from the relief sought, nothing of substance would remain. The second hurdle is that the amendment sought is being opposed and it is not procedural as it is meant to answer the very objections that have been raised by the first and second defendant. It remains true that the relief sought by the plaintiff is incompetent. The proper order is to strike the matter off the roll as it cannot be dismissed without deciding the merits. There is no reason for punitive costs as the defendants have not succeeded on the other points *in limine*. The matter is accordingly struck off the roll with costs.

Mugadza Chinzamba and Partners, plaintiff's legal practitioners
Tundu Law Chambers, 1st and 2nd defendants' legal practitioners
Civil Division of the Attorney General, 3rd and 4th defendants' legal practitioners